

Court No. - 29

Case :- WRIT - C No. - 17416 of 2006

Petitioner :- Awadhesh Pratap

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- D.B. Yadav

Counsel for Respondent :- C.S.C.,W.H.Khan

Hon'ble Tarun Agarwala,J.

Hon'ble Vivek Chaudhary,J.

On the illness slip of the leaned counsel for the petitioner the case is passed over today.

Order Date :- 27.2.2017

Shahroz

(Vivek Chaudhary, J.) (Tarun Agarwala,J.)

Court No. - 35

Case :- WRIT - C No. - 17416 of 2006

Petitioner :- Awadhesh Pratap

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- D.B. Yadav

Counsel for Respondent :- C.S.C., W.H. Khan

Hon'ble Bharati Sapru, J.

Hon'ble Shashi Kant, J.

Rejoinder affidavit filed on 16.04.2010 may be traced out and brought on record by the next cause list.

List in the next cause list.

Order Date :- 4.4.2017

pks

Court No. - 35

Case :- WRIT - C No. - 17416 of 2006

Petitioner :- Awadhesh Pratap

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- D.B. Yadav

Counsel for Respondent :- C.S.C., W.H. Khan

Hon'ble Bharati Sapru, J.

Hon'ble Shashi Kant, J.

Counter and Rejoinder Affidavits have been exchanged. The matter relates to the disputed bills of a very old period. The petitioner was the owner of an ice factory, which was remained shut down from the year 2002 onwards when the connection was permanently disconnected.

In view of this, we think it in the best interest of justice that the petitioner be given an opportunity to settle his bills as is provided in Clause 6.5 of U.P. Electricity Supply Code, 2005. The petitioner may appear before the authority concerned within the next two weeks, who will thereafter, decide the matter of the petitioner within the next one month.

List this matter now after six weeks.

Sri R.S. Umrao, learned Counsel for the respondent may file an affidavit with regard to the result of the settlement.

Needless to say that the petitioner be given a proper opportunity of hearing.

Order Date :- 17.4.2017

S.P.

Court No. - 35

Case :- WRIT - C No. - 17416 of 2006

Petitioner :- Awadhesh Pratap

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- D.B. Yadav

Counsel for Respondent :- C.S.C.,R.S. Umrao,W.H.Khan

Hon'ble Bharati Sapru,J.

Hon'ble Shashi Kant,J.

List revised.

None appears to press the petition.

The matter is dismissed in default.

Interim order, if any, stands vacated.

Order Date :- 30.5.2017

pks

Court No. - 58

Case :- WRIT - C No. - 17416 of 2006

Petitioner :- Awadhesh Pratap

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- D.B. Yadav

Counsel for Respondent :- C.S.C.,R.S. Umrao,W.H.Khan

Hon'ble Shabihul Hasnain,J.

Hon'ble Krishna Pratap Singh,J.

Re:- Restoration Application No.196569 of 2017:-

Heard learned counsel for the applicant.

This is an application for recall of the order dated 30.5.2017, dismissing the writ petition for want of prosecution. Cause shown for non-appearance of the counsel in the affidavit filed in support of the restoration application is to the satisfaction of the Court.

Restoration Application is allowed.

Order dated 30.5.2017 is recalled.

Writ Petition is restored to its original number.

Interim order, if any, stands restored.

Order Date :- 2.8.2017

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Hon'ble Shabihul Hasnain,J.

Hon'ble Krishna Pratap Singh,J.

Petition is restored vide order of dated pass on Restoration Application No. 196569 of 2017.

Office to proceed further.

Order Date :- 2.8.2017

n.u.

Court No. - 58

Case :- WRIT - C No. - 17416 of 2006

Petitioner :- Awadhesh Pratap

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- D.B. Yadav

Counsel for Respondent :- C.S.C.,R.S. Umrao,W.H.Khan

Hon'ble Shabihul Hasnain,J.

Hon'ble Krishna Pratap Singh,J.

Heard learned counsel for the petitioner as well as learned Standing Counsel for the UPPCL.

It has been informed that a representation was directed to be decided by this Court and the same has been decided by the opposite party, which the learned counsel for the opposite party wants to bring on record by filing supplementary affidavit.

As prayed by learned counsel for the opposite party, list this case after two weeks to him to file supplementary affidavit.

Order Date :- 5.9.2017

Pr/-

Court No. - 37

Case :- WRIT - C No. - 17416 of 2006

Petitioner :- Awadhesh Pratap

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- D.B. Yadav

Counsel for Respondent :- C.S.C.,R.S. Umrao,W.H.Khan

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Ifaqat Ali Khan,J.

Heard Sri D.B.Yadav, learned counsel for the petitioner and Sri R.S.Umrao for the respondent-Electricity Department.

Sri D.B.Yadav submits that he has received a supplementary counter affidavit to which he may be granted some time to file a reply.

Sri R.S. Umrao states that the rejoinder affidavit to the main counter affidavit filed by the petitioner is not available with him. A copy of the same will be made available to Sri Umrao during the course of the day.

Let a reply to the supplementary counter affidavit be filed by the petitioner within two weeks.

List after two weeks.

Order Date :- 24.11.2017

S.Chaurasia

Court No. - 37

Case :- WRIT - C No. - 17416 of 2006

Petitioner :- Awadhesh Pratap

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- D.B. Yadav

Counsel for Respondent :- C.S.C.,R.S. Umrao,W.H.Khan

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shailendra Kumar Agrawal,J.

Heard Sri D.B. Yadav, learned counsel for the petitioner and Sri R.S. Umrao, learned counsel for the respondent-Electricity Department.

The dispute relates to payment of electricity dues, which is sought to be realized through the recovery certificates under challenge.

The petitioner was running an Ice Factory, which was shut down from the year 2002 onwards when the electricity connection was permanently disconnected and the Electricity Department sought recovery for the period during which the factory was shut down and the assets of the factory were attached. According to the petitioner, there were two recovery certificates dated 8th January, 2002 and other dated 10th January, 2002 as referred to in paragraph 12 of the Writ Petition. Attachment proceedings have been initiated in respect of the recovery citation dated 10th January, 2002, whereas the other recovery citation was being enforced against the petitioner for realization of the said dues.

An interim order was passed staying the order of attachment by this Court on 12th April, 2006. The writ petition was dismissed in default on 30th May, 2017 and has been restored on 02.08.2017. From the exchange of counter and rejoinder affidavits, it appears that the petitioner in his rejoinder has taken a stand of having made certain deposits which are not reflected in the ledger account book of the respondent, reference whereof has been made in paragraphs no.6 to 10 of the rejoinder affidavit.

The electricity connection of the factory was permanently disconnected, where after the present writ petition was filed in the year 2006. The respondent Electricity Department has filed a supplementary counter affidavit. In response to the order passed by this Court on 17th April, 2017 an order was passed by the Executive Engineer, Electricity Distribution Division Ist, Mau, District Mau on 24.08.2017, copy whereof has been filed as Annexure no. SCA-2 to this supplementary counter affidavit. The same states that the petitioner had submitted 10 receipts and after having considered the same and adjusting the amount paid, the amount is sought to be recovered is to the tune of Rs.5,35,490/- only.

A supplementary rejoinder affidavit has been filed stating therein that the ledger books which have been maintained by the respondents do not reflect the correct entries and that there is a discrepancy in the same as stated in paragraph no.5 of the supplementary rejoinder affidavit.

Sri R.S. Umrao, learned counsel for the respondent-Electricity Department submits that he will have to verify these averments and then assist the court accordingly. He prays for and is granted two weeks for the same.

List immediately thereafter.

Order Date :- 12.12.2017

Anoop

Court No. - 34

Case :- WRIT - C No. - 17416 of 2006

Petitioner :- Awadhesh Pratap

Respondent :- State of U.P. and Others

Counsel for Petitioner :- D.B. Yadav

Counsel for Respondent :- C.S.C.,R.S. Umrao,W.H.Khan

Hon'ble Sudhir Agarwal,J.

Hon'ble Rajeev Misra,J.

As prayed, put up tomorrow i.e. 20.11.2019.

Order Date :- 19.11.2019

Prajapati

Court No. - 34

Case :- WRIT - C No. - 17416 of 2006

Petitioner :- Awadhesh Pratap

Respondent :- State of U.P. and Others

Counsel for Petitioner :- D.B. Yadav

Counsel for Respondent :- C.S.C.,R.S. Umrao,W.H.Khan

Hon'ble Sudhir Agarwal,J.

Hon'ble Rajeev Misra,J.

1. Heard Sri D.B.Yadav, learned counsel for petitioner and learned Standing Counsel for respondents.
2. This writ petition under Article 226 of Constitution of India has been filed by one Awadhesh Prasad with a prayer to issue a writ of certiorari to quash recovery certificate dated 10.01.2002, Annexure 6, and attachment for auction order dated 9.3.2006, Annexure 7 to writ petition. It has also prayed for issue of writ of mandamus not to harass petitioner by making recovery of excess amount.
3. The facts in brief stated in the writ petition are that petitioner is owner of M/s Sri Ram Ice Factory, situate at Mohalla Tahipura, Tehsil Sadar District Mau. For running the aforesaid Ice Factory, there is an electric connection bearing SC No.1361/003860. A recovery certificate was issued in 1996 for recovery of electricity dues of Rs.65,010/-. Challenging the said recovery certificate, Original Suit No.26 of 1996 was filed in the Court of Civil Judge (Senior Division), Mau, seeking a permanent injunction against recovery of aforesaid amount. Petitioner also filed an application for ad interim injunction under Order 39 Rules 1 and 2 C.P.C. which was declined by Court of Civil Judge vide order dated 28.2.1996. M/s Sri Ram Ice Factory, plaintiff in the aforesaid suit, filed Misc. Civil Appeal No.28 of 1996 wherein a temporary injunction was granted by Sri Narendra Ojha, First Additional District Judge, Mau vide order dated 31.5.1999. In the meantime, petitioner had deposited Rs.36,505/-, pursuant to aforesaid recovery certificate issued for Rs.65,010/-. Petitioner then approached

Executive Engineer for reconciliation of accounts pursuant where to a letter dated 06.09.2001 was issued by Executive Engineer, Mau informing petitioner that after posting of all the payments made by him, upto November, 2000, a sum of Rs.2,98,915/- was outstanding which included Rs.2,13,000/- based on audit report on the basis of consumption on average basis due to defective meter for the period of August, 1991 to May, 1993. Petitioner was required to pay aforesaid amount of Rs.2,98,915/-.

4. The payment having not been made, a demand notice under Section 3 of U.P. Government Electrical Undertaking (Dues Recovery) Act, 1958 (*hereinafter referred to as "UP Act, 1958"*) was issued on 13.03.2001 by Executive Engineer concerned for recovery of Rs.3,38,127/-, which was the amount outstanding upto July, 2001 along with notice expenses of Rs.20/-. Petitioner then filed Original Suit No.255 of 2001 in the Court of Civil Judge (Senior Division) Mau, seeking injunction against aforesaid demand notice alleging that amount, which has been paid by petitioner has not been accounted for and therefore, demand of Rs.3,38,147/- is not correct. In the meantime, petitioner's electric connection was also disconnected for non payment of dues in November, 2000. A recovery certificate under Section 5 of UP Act, 1958 was issued on 08.01.2002 for recovery of Rs.3,38,167/-. Another recovery certificate for subsequent dues accruing was issued on 10.01.2002 for recovery of Rs.1,87,348/-. In pursuance of recovery certificate aforesaid issued by Executive Engineer, Revenue Authorities proceeded to recover dues as arrears of land revenue and attached on 20.3.2006 various machines installed at Ice Factory of petitioner.

5. In para 17 of writ petition, petitioner has given details of certain amount deposited by him from 30.03.1995 to 31.03.1999, which is as under :

Date	Deposited Amount	Cheque No.
30.03.1995	Rs.20,000/-	
31.03.1995	Rs.10,000/-	2789
31.03.1995	Rs.10,000/-	2791
31.03.1995	Rs.10,000/-	2790
29.05.1995	Rs.31,000/-	
12.06.1995	Rs.4,710/-	
31.03.1999	Rs.60,000/-	

6. After attachment of petitioner's movable properties, this writ petition has been filed challenging recovery certificate dated 10.01.2002.

7. Learned counsel for petitioner could not dispute that electricity dues found outstanding against petitioner upto July, 2001 is subject matter of dispute in Original Suit No.255 of 2001.

8. Basically dispute relates to accounting. It is also evident from averments made in the writ petition that payment has not been made by petitioner regularly, inasmuch as, para 17 of writ petition itself shows that for a period of about 4 years i.e. 30.03.1995 to 31.03.1999 only seven payments were made by petitioner and total amount as per averments made in para 17 of writ petition comes to Rs.1,45,710/- only. Nothing has been brought on record by petitioner to show amount of regular monthly bills of consumption of electricity and why payments were not made regularly when billing cycle of petitioner is monthly.

9. In the counter affidavit filed on behalf of respondents 4 and 5 sworn by Sri Anil Kumar, Executive Engineer, on 27.08.2006, it is stated that arrears of electricity dues upto January, 2002 against petitioner was Rs.4,59,604/- and late payment surcharge upto September, 2002 came to Rs.73,536/-. Further, it is said that electric connection of petitioner was finally disconnected permanently w.e.f.

10.01.2002 and total outstanding dues as on date was found as Rs.5,35,490/-. The electricity bills, which were issued for the period subsequent to January, 2002 were waived and outstanding dues of Rs.5,35,490/- was found payable by petitioner for which office memorandum dated 22.11.2002, (Annexure CA-2 to the counter affidavit) was issued. Since recovery certificate for Rs.3,38,167/- was already issued, therefore for balance amount, recovery certificate of Rs.1,87,000/- was also issued.

10. In the rejoinder affidavit, petitioner has further stated in para 6 that he also made payment of Rs.14,000/- on 31.5.1999 and Rs.35,000/- on 30.6.1999. Thus, from 30.03.1995 to 30.06.1999 a total sum of Rs.2,30,890/- was paid. According to petitioner, nothing remained outstanding.

11. The question as to what was the actual amount outstanding against petitioner, involves investigation of facts of payments, electricity consumption and bills raised from time to time. Earlier recovery certificate of Rs.3,38,147/- is already subjudice before Civil Court. Subsequent recovery certificate virtually is a continuation of cause of action of earlier disputed amount. Since petitioner has already availed remedy of part of cause of action in a Civil Court, we do not find that in writ jurisdiction under Article 226 of Constitution, disputed questions of facts involving accounting should be entertained particularly as we have already said that for the period of four years from March, 1995 to June, 1999 petitioner made only 10 payments which shows that he did not make payment regularly, every month, though as per Annexure RA-5 to the rejoinder affidavit it is evident that petitioner's billing cycle was monthly and monthly charges of petitioner's Ice Factory varied from more than Rs.10,000/- to 30,000/-. Annexure RA-5 shows that during lean period i.e. Winter, when demand of ice is quite low, consumption is on lower side while

during the period of May to August, consumption is much higher. The lowest consumption has been around Rs.8,000/- to Rs.9,000 and highest consumption has been around Rs.42,000/- and odd.

12. That being so, average consumption of petitioner comes to more than Rs.8,000/- to Rs.12,000/- per month. Without going into other aspects if we determine total dues from March, 1995 to June, 1999 i.e. for 50 months, it will come to around Rs.5 lakhs to 7.5 lakhs while as per own showing of petitioner, during the aforesaid period, he has made a total payment of only Rs.2,30,890/-. This is evident to show that petitioner is in default and has not paid electricity dues regularly.

13. Since dispute with regard to part of recovery of amount is already subjudice in Civil Court it is open to petitioner to take up entire cause of action at one place. In our view we need not examine and go into the question of accounting involving investigation of facts.

14. Writ petition is accordingly dismissed.

15. Interim order, if any, stands vacated.

Order Date :- 5.12.2019

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